$8,490,000

ILLINOIS FINANCE AUTHORITY SPORTS FACILITY REVENUE BONDS (NORTH SHORE ICE ARENA PROJECT) SERIES 2008

BOND PURCHASE AGREEMENT

January 17, 2008

Illinois Finance Authority
Two Prudential Plaza
180 North Stetson Avenue, Suite 2555
Chicago, Illinois
60601

North Shore Ice Arena, LLC
Wilmette, Illinois

Wilmette Hockey Association, Inc.
Wilmette, Illinois

Winnetka Hockey Club, Inc.
Winnetka, Illinois

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Oppenheimer & Co. Inc. (the "Underwriter"), acting on its own behalf and not as fiduciary or agent for you, hereby offers to enter into the following agreement with the Illinois Finance Authority (the "Issuer"), a body politic and a corporate duly organized and existing under the laws of the State of Illinois (the "State"), North Shore Ice Arena, LLC, an Illinois limited liability company (the "Borrower"), Wilmette Hockey Association, Inc., an Illinois not- for-profit corporation ("Wilmette Hockey Association"), and Winnetka Hockey Club, Inc., Illinois not-for-profit corporation ("Winnetka Hockey Club" and, together with Wilmette Hockey Association, the "Guarantors" and individually, each a "Guarantor") which, upon acceptance of this offer by the Issuer, the Borrower and the Guarantors, will be binding upon the Issuer, the Borrower the Guarantors and the Underwriter. This offer is made subject to acceptance by the Issuer, the Borrower and the Guarantors by execution of this Bond Purchase Agreement and its delivery to

the Underwriter at or prior to 5:00 p.m., Central Standard Time, on the date hereof, and if not so accepted will be subject to withdrawal by the Underwriter upon notice to the Borrower and the Guarantors at any time prior to acceptance hereof by the Borrower and the Guarantors. All terms not defined herein shall have the meaning set forth in the Offering Document (defined below), or if not set forth therein, as set forth in the Indenture (defined below).

Each of the undersigned represents that it is authorized to enter into this Bond Purchase Agreement.

Section 1. Purchase and Sale of the Bonds.

(a) Subject to the terms and conditions and upon the basis of the representations, warranties and covenants hereinafter set forth, the Underwriter hereby agrees to purchase from the Issuer, and the Issuer hereby agrees to sell to the Underwriter, all (but not less than all) of the Issuer's $8,490,000 principal amount Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2008 (the "Bonds") at an aggregate purchase price of $8,188,308.85 (representing the principal amount of the Bonds, less an original issue discount of $131,891.15 and an Underwriter's discount of $169,800 with respect thereto). In addition, the Underwriter will be paid a fee at closing of $84,900.00. The proceeds of the Bonds will be lent to the Borrower (i) to finance a portion of the costs to construct and equip an ice skating facility (the "Project") located in Northbrook, Illinois, (ii) to deposit moneys into a debt service reserve fund related to the Bonds, (iii) to pay capitalized interest on the Bonds through February 1, 2009, and (iv) to pay a portion of the costs of issuing the Bonds. The Underwriter acknowledges and agrees that the Issuer is selling the Bonds pursuant to the Illinois Finance Authority Act, 20 ILCS - 3501/801 *et seq*. (the "Act").

(b) The Bonds shall mature, shall bear interest at the rate or rates as set forth in Exhibit A hereto, and shall be subject to redemption, and shall have such other terms and provisions, all as described in the Limited Offering Memorandum dated January 17, 2008 (the "Offering Document") (including the cover page and all summary statements and exhibits and appendices included therein or attached thereto), as amended or supplemented from time to time. The terms of the Bonds shall be as set forth in the Trust Indenture dated as of January 1, 2008 (the "Indenture"), by and between the Issuer and Amalgamated Bank of Chicago, as trustee (the "Trustee"), a substantially final form of which was placed on file with the Issuer.

The proceeds derived from the sale of the Bonds will be used to fund a loan (the "Loan") from the Issuer to the Borrower and used by the Borrower for the purposes described in Section 1(a). The Loan will be made pursuant to a Loan Agreement, dated as of January 1, 2008 (the "Loan Agreement"), by and among the Issuer, the Borrower and the Guarantors. Payment of the principal of and interest on the Bonds shall be made solely from the Trust Estate (as defined in the Indenture).

(c) In order to induce the Issuer to enter into this Bond Purchase Agreement, and to induce the Issuer to issue and deliver the Bonds, the Borrower and the Guarantors have joined in this Bond Purchase Agreement.

(d) Upon acceptance by the Issuer, the Borrower and the Guarantors of this Bond Purchase Agreement, the Underwriter agrees to offer and sell the Bonds at the initial offering prices set forth in the Offering Document.

(e) The Underwriter agrees that it will make a limited offering to sophisticated investors of the Bonds at the initial offering prices set forth on the cover of the Offering Document.

(f) The Issuer, the Borrower and the Guarantors hereby certify that (i) the Preliminary Limited Offering Memorandum dated January 9, 2008, as amended and

supplemented by a Supplement to Preliminary Limited Offering Memorandum dated January 11, 2008 (collectively, the "Preliminary Offering Document") as of January 11, 2008 was deemed final by the Issuer, the Borrower and the Guarantors for purposes of Rule 15c2-12 ("Rule 15c2- 12") promulgated by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as amended (the "Securities Exchange Act"), except for the omission of such information which is dependent upon the final pricing of the Bonds for completion, and (ii) the Offering Document as of the date hereof is deemed final by the Issuer, the Borrower and the Guarantors for purposes of Rule 15c2-12, provided that the Issuer makes the representations in this paragraph only with respect to information contained under the captions "THE ISSUER" and "LITIGATION" (to the extent such section relates to the Issuer) in the Preliminary Offering. Document and the Offering Document. The Borrower and the Guarantors hereby approve the form of and authorize the Underwriter to prepare, use and distribute the Offering Document in final form in connection with the public offering and sale of the Bonds. The Borrower and the Guarantors agree to execute the Offering Document in such final form as soon as possible at the discretion of the Underwriter. The Borrower agrees to provide to the Underwriter, within seven (7) Business Days of the date hereof, sufficient copies of the Offering Document to enable the Underwriter to comply with the requirements of Rule 15c2-12(b)(4) of the Securities and Exchange Commission under the Securities Exchange Act and with the requirements of Rule G- 32 of the Municipal Securities Rulemaking Board. The Borrower shall also deliver, or cause the Underwriter to deliver to the Issuer,

copies of the Preliminary Offering Document and Offering Document, in form and quantity, sufficient to comply with the Issuer's current requirements. The Underwriter hereby agrees to file a copy of the Offering Document with a nationally recognized municipal securities information repository on or before the date twenty-five (25) days after the Closing Date.

(g) If, between the date of this Bond Purchase Agreement and the date which is one hundred twenty (120) days following the Closing Date, any event shall occur which might or would cause the Offering Document to contain any untrue statement of a material fact or to omit to state any material fact necessary to make the statements therein, in the light of the circumstances under which they were made, not misleading, the Borrower shall notify the Underwriter and if, in the opinion of the Underwriter or the Issuer, such event requires the preparation and publication of a supplement or amendment to the Offering Document, the Borrower will supplement or amend the Offering Document in a form and in a manner approved by the Underwriter, and the Issuer. If the Offering Document is so supplemented or amended prior to the Closing, such approval by the Underwriter and the Issuer of a supplement or amendment to the Offering Document shall not preclude the Underwriter from thereafter terminating this Bond Purchase Agreement if, in the reasonable judgment of the Underwriter such amendment or supplement has or will have a material adverse effect on the marketability of the Bonds.

Section 2.

Closing.

At 11:00 a.m., Central Standard Time, on January 25, 2008, or at such other time or on such earlier or later date as shall have been mutually agreed upon by the Issuer, the Borrower and the Underwriter, the Issuer will deliver (as directed by the Underwriter), or cause to be delivered, through the facilities of The Depository Trust Company, New York, New York ("DTC") the Bonds, duly executed on the Issuer's behalf, together with the other documents hereinafter

mentioned; the purchase price of the Bonds will be paid as set forth in Section 1 hereof by delivering to the order of the Trustee for the account of the Issuer immediately available funds in the amount of $8,188,308.85, representing the purchase price for the Bonds as set forth in Section 1(a) hereof. Payment for and delivery of the Bonds as aforesaid shall be made at the offices of Barnes & Thornburg LLP, Chicago, Illinois. Such payment and delivery is herein called the "Closing" and the date of the Closing is herein called the "Closing Date." The Bonds will be delivered as one fully registered global certificate for each series of Bonds registered in the name of Cede & Co. (or such other name as the Underwriter may request in writing at least two business days prior to the Closing).

Section 3.

Representations, Warranties and Covenants of the Issuer.

The Issuer, by its acceptance hereof, represents, warrants and covenants to the Underwriter, the Borrower and the Guarantors that:

under the Act;

(a)

(b) the Issuer is a body politic and corporate of the State created and existing,

The Issuer is authorized under the laws of the State, including particularly the Act, to (i) issue the Bonds for the purposes for which they are to be issued, as set forth in the Offering Document; (ii) lend the proceeds of the Bonds to the Borrower for the purposes set forth in the Loan Agreement; (iii) enter into this Bond Purchase Agreement, the Indenture, the Loan Agreement and the Tax Exemption Agreement (the "Issuer Documents"); and (iv) pledge and assign to the Trustee the payments to be made by the Borrower and the Issuer's rights under the Loan Agreement (other than the Unassigned Rights) as security for the payment of the principal of and interest on the Bonds.

(c) The Issuer has full power and authority to consummate the transactions contemplated to be consummated by it in the Issuer Documents and the Offering Document, and the Issuer has duly authorized and approved the execution and delivery of the same as well as any and all such other agreements and documents as may be required to be executed, delivered or received by the Issuer in order to carry out, give effect to and consummate the transactions contemplated herein and in the Offering Document.

(d) The Bonds, when issued, delivered and paid for as provided herein and in the Indenture will have been duly authorized and issued and will constitute valid and binding special limited obligations of the Issuer enforceable in accordance with their terms and entitled to the benefits and security of the Indenture and Loan Agreement (subject in each instance to applicable bankruptcy, reorganization, insolvency, moratorium or other similar law or laws affecting the enforcement of creditors' rights generally or relating to a public body such as the Issuer, as from time to time in effect, and further subject to the availability of applicable equitable principals). Under no circumstances shall the Bonds and the interest thereon be or become an indebtedness or obligation of the State, within the purview of any constitutional or statutory limitation or provision, or a charge against the credit of, or a pledge of the taxing power of, the Issuer, the State or any political subdivision thereof. The Bonds shall be special limited. obligations of the Issuer, and no taxes are required to be levied for the payment of principal, premium, if any, and interest on the Bonds; such principal of, premium, if any, and interest on

the Bonds being payable (except as otherwise provided in the Indenture) solely out of moneys to be received by the Issuer as proceeds from the sale of the Bonds or payments or prepayments to be made from amounts payable under the Loan Agreement, from certain amounts on deposit with the Trustee pursuant to the Indenture and from certain income, if any, from the temporary investment of any of the foregoing. The Issuer does not have the power to levy taxes for any purpose whatsoever, including, but not limited to payment of principal of, premium, if any, and interest on the Bonds,

(e) The execution and delivery by the Issuer of the Bonds, the Issuer. Documents and other documents contemplated herein or in the Offering Document to be executed and delivered by the Issuer, and compliance by the Issuer with their provisions, and the assignment of the Loan Agreement (other than Unassigned Rights) to the Trustee, do not and will not, in any material respect, conflict with or constitute on the part of the Issuer a breach of or a default under any existing law, court or administrative regulation, decree, order, agreement, indenture, mortgage or lease by which the Issuer is or may be bound; provided, no representation is made with respect to Federal or State securities laws, rules or regulations.

(f) The information relating to the Issuer under the headings "THE ISSUER" and "LITIGATION" contained in the Offering Document as of its date will not, and as of the date of the Closing will not, contain an untrue statement of a material fact or omit to state a material fact required to be stated therein, or necessary to make the statements made therein, in light of the circumstances under which they were made, not misleading.

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Except as may be set forth in the Offering Document, there is no action, suit, proceeding, inquiry or investigation at law or in equity or before or by any court, public board or body pending or, to the knowledge of the Issuer, threatened against or affecting the. Issuer (as to which the Issuer has received service of process) or, to the actual knowledge of the Issuer, threatened against or affecting the Issuer (or to the actual knowledge of the Issuer, any meritorious basis therefor) wherein an unfavorable decision, ruling or finding (i) would adversely affect the transactions contemplated herein or in the Offering Document, (ii) would adversely affect the validity or enforceability against the Issuer of the Bonds, the Issuer Documents or any other agreement or instrument to which the Issuer is a party and which is used: or contemplated for use in the consummation by the Issuer of the transactions contemplated herein or in the Offering Document or (iii) would question the exclusion of the interest on the Bonds from gross income for federal income tax purposes.

(h) Neither the corporate existence of the Issuer nor the right of the members of the Issuer to their offices nor the title of the officers of the Issuer to their respective offices are being contested and no grant of authority or outcome of the proceedings of the Issuer for the issuance of the Bonds has been repealed, revoked or rescinded.

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The Issuer agrees to cooperate reasonably with the Underwriter and its counsel in any endeavor to qualify the Bonds for offering and sale under the securities or "blue sky" laws of such jurisdictions of the United States as the Underwriter may request; provided, however, that the Issuer shall not be required with respect to the offer or sale of the Bonds to consent to suit or to consent to service of process in any jurisdiction or take any action which it deems unreasonably burdensome and shall not be deemed to have made any representations with

regard to securities or "blue sky" laws of any State or the securities laws of the United Sates. The Issuer consents to the distribution by the Underwriter of drafts of the Offering Document prior to the availability of the Offering Document in obtaining such qualification, subject to the right of the Issuer to withdraw such consent for cause by written notice to the Underwriter. The Issuer shall not be obligated to pay any expenses or costs (including legal fees) incurred in connection with such qualification.

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Any certificate signed by an authorized officer of the Issuer and delivered to the Underwriter shall be deemed a representation and warranty by the Issuer to the Underwriter as to the statements made therein.

Section 4.
Representations. Warranties and Covenants of the Borrower.

In order (i) to induce the Underwriter to enter into this Bond Purchase Agreement and (ii) to induce the Issuer to enter into the Issuer Documents and to issue the Bonds for the purposes stated above, with full acknowledgment and appreciation that the investment value of the Bonds and the ability of the Issuer to sell and the Underwriter to resell the Bonds are dependent upon the credit standing of the Borrower, and in consideration of the foregoing and of the execution and delivery of this Bond Purchase Agreement by the other parties hereto, the Borrower represents and warrants and covenants with the Issuer and the Underwriter that:

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The Borrower is a limited liability company duly incorporated and validly existing and in good standing under the laws of the State and has all necessary material licenses and permits required to date to carry on its business and to operate the Project. The Borrower has not received any notice of an alleged violation and, to the best of its knowledge, the Borrower is not in violation of any zoning, land use or other similar law or regulation applicable to any of its facilities which would materially adversely affect the operations or financial condition of the Borrower. The Borrower has the full right, power and authority to enter into and deliver the Loan Agreement, the Tax Exemption Agreement, the Ground Lease between Chicago Title Land Trust Company, as trustee under a trust agreement known as Trust No. 1114334 and the Borrower dated as of December 1, 2007, the Leasehold Mortgage, the Continuing Disclosure Agreement and this Bond Purchase Agreement (collectively, the "Borrower Documents"), to execute and deliver and to authorize the distribution and use of the Offering Document, and to perform other acts and transactions

as provided for in each of the foregoing.

(b) The execution and delivery by the Borrower of the Borrower Documents and the Offering Document and the other documents contemplated herein and therein and the compliance with the provisions of any and all of the foregoing documents and the application of the proceeds of the Bonds, together with certain other moneys, for the purposes described in the Offering Document, do not and will not conflict with or result in the breach of any of the terms, conditions or provisions of, or constitute a default under, the Articles of Organization or the Operating Agreement of the Borrower or any other material agreement, indenture, mortgage, lease or instrument by which the Borrower or any of its property is bound or any existing law or court or administrative regulation, decree or order which is applicable to the Borrower or its property.

(c) To the best of its knowledge, no default, event of default or event which, with notice or lapse of time, or both, would constitute a default or an event of default under any Borrower Document or any other material agreement or material instrument to which the Borrower is a party or by which it is or may be bound or to which any of its respective property is or may be subject has occurred and is continuing.

(d) The Borrower has duly authorized all necessary action required to be taken by it for (i) the issuance and sale of the Bonds by the Issuer upon the terms and conditions set forth herein, in the Offering Document and in the Indenture, (ii) the approval of the Bonds and the Indenture, (iii) the approval and execution of the Offering Document and (iv) the execution, delivery and performance of the Borrower Documents and any and all such other agreements and documents as may be required to be executed, delivered and performed by the Borrower in order to carry out, effectuate and consummate the transactions contemplated on the Borrower's part by the Borrower Documents and by the Offering Document.

(e) At the Closing, no liens, encumbrances, covenants, conditions and restrictions, if any, will be then-existing (not otherwise previously disclosed to the Underwriter or created on the date thereof pursuant to the Borrower Documents) which would interfere with or impair the operation, or materially adversely affect the value, of the Project or the Borrower's other assets, given the purposes for which the same are being used.

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The Preliminary Offering Document did not, as of January 11, 2008, and the Offering Document did not, as of its date, and will not as of the date of the Closing, contain any untrue statement of a material fact or omit to state a material fact required to be stated therein or necessary to make the statements made therein, in light of the circumstances under which they are made, not misleading; provided, however, that the Borrower makes no representation or warranty as to the statements and information contained in the Offering Document under the captions "THE ISSUER," "THE BONDS Book-Entry Only System," "LITIGATION" (to the extent such section relates to the Issuer), "TAX MATTERS," "NO RATING" and "UNDERWRITING" and the statements and information contained in APPENDIX E (Form of Bond Counsel Opinion) to the Offering Document, except to the extent that information under such captions was based upon information supplied by, or solely within the knowledge of, the Borrower. The Borrower hereby consents to the use of the Offering Document in connection with the solicitation of purchases of the Bonds by the Underwriter and confirms that it has consented to the use of the Preliminary Offering Document for such purpose prior to the availability of the Offering Document.

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The Borrower will not take or omit to take any action which will in any way cause or result in the proceeds of the sale of the Bonds being applied in a manner other than as provided in the Borrower Documents or as described in the Offering Document.

(h) Except as may be described in the Offering Document, there is no action, suit, proceeding, inquiry or investigation at law or in equity or before or by any public board or body pending or, to the knowledge of the Borrower, threatened against or affecting the Borrower, or to the knowledge of the Borrower any meritorious basis therefor, wherein an unfavorable decision, ruling or finding would have a material adverse affect on the financial condition of the Borrower, the operation by the Borrower of its facilities and the transactions

contemplated by the Borrower Documents and the Offering Document or the tax-exempt status of the Borrower or would have an adverse affect on the validity or enforceability of the Borrower Documents or any other agreement or instrument by which the Borrower is or may be bound or would in any way contest the existence or powers of the Borrower.

(i) This Bond Purchase Agreement is, and upon their execution and delivery

the other Borrower Documents will be, the **legal,** valid and binding obligations of **the Borrower** enforceable in accordance with their respective terms **(**subject to any applicable bankruptcy, reorganization, insolvency, moratorium or other laws affecting the enforcement of creditors? rights generally from time to time in effect and to applicable legal principles and procedural: requirements if equitable and other specific remedies are sought**)**.

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The Borrower is exempt from federal income taxes **under** Section 501(a) of the Code, by virtue of Wilmette Hockey Association, as **the** sole member of **the** Borrower, being an organization described in Section **501**(c)(3) of the Code, and it is not a "private foundation" as defined in Section 509**(a)** of **the** Code. The Borrower has not impaired **its** status as **an** organization exempt from federal income taxes under the Code and **will** not, either from and including the date hereof to and including the date of the Closing and, thereafter, **while any** of the Bonds remain outstanding, impair its status **as** an organization exempt from federal income taxes under the Code. There are no facts or circumstances presently existing **which** could cause such status to be so impaired.

(k) Any certificate signed by an authorized officer of the Borrower and which has been delivered to the Issuer or the Underwriter shall be deemed a representation and warranty **by** the Borrower to the Issuer and **the** Underwriter as to the statements **made** therein.

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The Borrower agrees to cooperate reasonably with the Underwriter and its counsel in any endeavor to qualify the Bonds for offering **and** sale under the securities or "blue sky" laws of such jurisdictions of **the** United States as the Underwriter may request, provided that the Borrower shall not be required to qualify to do business **in** any jurisdiction where it is not now so qualified, or to take any action which would subject it to general service of process in any jurisdiction **where** it is not now so subject. The Borrower ratifies and consents to the use of drafts of the Preliminary Offering Document, the Preliminary Offering Document **and** drafts of the Offering Document prior to the availability of **the** Offering Document **by** the Underwriter in obtaining such qualification. The Borrower shall pay all reasonable expenses and costs (including legal fees) incurred in connection with such qualification.

(m) To the best knowledge of the Borrower, after due inquiry**,** (i) other than those Hazardous Substances (as hereinafter defined) used in the course of operation of the facility in accordance with federal, state and local **laws and** regulations, no dangerous, **toxic** or hazardous pollutants, contaminants, chemicals, waste, materials or substances, as defined in **or** governed **by** the provisions of any federal**,** state or local law**,** statute, code, ordinance**,** regulation, requirement or rule relating thereto (collectively, "Environmental Regulations**"),** including urea formaldehyde, polychlorinated biphenyls, nuclear fuel or waste, radioactive materials, explosives, carcinogens and petroleum products, or any other waste, material**,** substance, pollutant or

contaminant which would subject the owner of the Project to any damages, penalties or liabilities under any applicable Environmental Regulations (collectively, "Hazardous

Substances") are now or have been **stored**, located, generated, produced, processed, treated, transported, incorporated, discharged, emitted, **released**, deposited or disposed of in, upon, under, over or from the Project, including real estate; (ii) **the** Project has not been used as or for a mine, a landfill, a dump or other disposal facility or a gasoline service station; (iii) no person, party, **or** private or governmental agency or entity has given **any** notice of or asserted any claim, cause of action, penalty, cost or demand for payment or compensation, whether or not involving any. injury or threatened injury to human health, the environment or natural resources, **resulting** or allegedly resulting from any activity or **event** described **in** (i) above; (iv) there are not now any actions, suits, proceedings or damage settlements relating in any way to Hazardous Substances in, upon, under, over or from the Project; and (v) the Project is not subject to any lien or claim for lien or **threat** of **a lien** in favor of **any** governmental entity or agency as a result of any release or threatened release of any Hazardous Substance.

(n) With respect to any pension **plan** (a "Plan") in which the Borrower participates and with **regard** to compliance by the Borrower with ERISA (i) **neither** any **Plan** nor the trusts created thereunder, nor any trustee or administrator thereof, has engaged in a "prohibited transaction," as such term is defined in Section 4975 of the Code, which could subject the Plan, any such trust, or any trustee or administrator thereof, or any party dealing with the Plan or any such trust to the tax or penalty on prohibited transactions imposed by Section 4975 of the Code; (ii) the performance of the transactions contemplated by the Offering Document will not involve any prohibited transaction (other than an exempt prohibited transaction); (iii) neither any **Plan** nor any such trusts **have** been terminated, **nor** have there been any "reportable events," as such term **is** defined in Section 4043 of ERISA, **since** the effective date of ERISA except for the reportable events heretofore disclosed to the Underwriter in writing **which** had no material adverse effect on the financial conditions or results of operation of the Borrower; and (iv) neither any Plan nor any such trusts **have** incurred any "accumulated funding deficiency," as such term is defined in Section 302 of ERISA (whether or not waived), since the effective date of ERISA. In addition, the Borrower and any subsidiary, member of a controlled corporation or affiliated service group in which any the Borrower is a member or has an interest, (**i**) has fulfilled **in all** material respects its obligations under the minimum funding standards of ERISA and the Code with respect to each of its pension **plans;** (ii) is in compliance in all material respects with the presently applicable provisions of ERISA, the Code and **any** Plan; and (iii) has not incurred any material and past due liability to the Pension Benefit Guaranty Corporation. Neither the Borrower nor any subsidiary, member of a controlled group or affiliated service group **in** which it is a member or has an interest, is required to make or accrue, nor **has** ever made or accrued, an obligation to make a material contribution to a "multiemployer plan" **as** defined in Section

3(37)(A) of ERISA or Section 414 of the Code.

(0) Subsequent to the date of the Preliminary Offering Document, there have been no material adverse changes in the assets, liabilities or condition of the Borrower, financial or otherwise, and neither the operations nor the properties of the Borrower have been adversely affected in any substantial way as the result of any fire, explosion, accident, strike, riot, flood, windstorm, earthquake, embargo, **war** or act of God.

(p) All approvals, consents, authorizations, certifications and **other** orders of any government authority, board, agency or commission having jurisdiction, **and** all **filings** with such entities, which would constitute a condition precedent to or would adversely affect the

performance by the Borrower of its obligations under the Borrower Documents have been or will be (**when** needed) obtained.

(q) The Borrower has complied with all previous continuing disclosure undertakings executed by it pursuant to **Rule** 15c2-12.

Section 5. Representations, Warranties and Covenants of **the** Guarantors.

In order (i) to induce the Underwriter to enter into this Bond Purchase Agreement and (ii) to induce the Issuer to enter into the Issuer Documents and to issue **the** Bonds for the purposes, stated above, with full acknowledgment and appreciation **that the** investment value of **the** Bonds and the ability of the Issuer to sell and the Underwriter to resell the Bonds are dependent upon the credit standing of the Guarantors, and in consideration of **the** foregoing **and** of the execution and delivery of this Bond Purchase Agreement by the other parties hereto, each Guarantor represents and warrants and covenants with **the** Issuer and the Underwriter that:

(a) The Guarantor is a not-for-profit corporation duly incorporated and validly existing **and** in good standing under the laws of **the** State and has all necessary material licenses and permits required to date to carry on its business and to operate its facilities. The Guarantor has not received any notice of an alleged violation and, to **the** best of its knowledge, the Guarantor is not in violation of **any** zoning**,** land use **or** other similar **law** or regulation applicable to any of its facilities

which **would** materially adversely affect the operations or financial condition of the Guarantor. The Guarantor has the full right, power and authority to enter into and deliver the Guaranty, **the** Loan Agreement and **this** Bond Purchase Agreement (collectively, the "Guarantor Documents"), to execute and deliver and to authorize the distribution and use of the Offering Document, and to perform other acts and transactions as provided for in each of the foregoing.

(b) The execution and delivery by the Guarantor of the Guarantor Documents and the Offering Document and the other documents, contemplated herein and therein and the compliance with the provisions of any and all of the foregoing documents and **the** application of the proceeds of the Bonds, together with certain other moneys, for the purposes described in the Offering Document, do not **and** will not conflict **with** or result **in** the breach of any of the terms, conditions or provisions of, or constitute a default under**, the** Articles of Incorporation or the By-laws of the Guarantor or any other material agreement, indenture**,** mortgage, lease or instrument by **which** the Guarantor or any of its property is bound or any existing law or court or administrative regulation, decree or order which is applicable to the Guarantor or its property.

(c) To the best of its knowledge, no default, event of default or event which, **with** notice or lapse of time, or both, would constitute a **default** or an event of default under any Guarantor Document or any other material agreement or material instrument to which the Guarantor is a party or by which it is or may be bound or to which **any** of its respective property **is** or may be subject has occurred and is continuing.

(d) The Guarantor has duly authorized all necessary action required to be taken by it for (i) the issuance and sale of the Bonds by the Issuer upon the terms and conditions set forth herein, in the Offering Document and in the Indenture, (ii) the approval of **the** Bonds

and the Indenture, (iii) the approval and execution of the Offering Document and (iv) the execution, delivery and performance of the Guarantor Documents and any and all such other agreements and documents as may be required to be executed, delivered and performed by the Guarantor in order to carry out, effectuate **and** consummate the transactions contemplated on the Guarantor's part by the Guarantor Documents and **by** the Offering Document.

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At the Closing, no liens, encumbrances, covenants, conditions and restrictions, if any, will be then-existing (not otherwise previously disclosed to the Underwriter or created on the date thereof pursuant to the Guarantor Documents) which would interfere with or impair the operation, or materially adversely affect the value, of the Project or the Guarantor's assets, given the purposes for which the same are being used.

(f)

The Preliminary Offering Document did not, as of January 11, 2008, and the Offering Document did not, as of its date, and will not as of the date of the Closing, contain any untrue statement of a material fact or omit to state a material fact required to be stated therein or necessary to make the statements made therein, in light of the circumstances under which they are made, not misleading; provided, however, that the Guarantor makes no representation or warranty as to the statements and information contained in the Offering Document under the captions "THE ISSUER", "THE BONDS - Book-Entry Only System," "LITIGATION" (to the extent such section relates to the Issuer), "TAX MATTERS," "NO RATING" and "UNDERWRITING" and the statements and information contained in APPENDIX E (Form of Bond Counsel Opinion) to the Offering Document, except to the extent that information under such captions was based upon information supplied by, or solely within the knowledge of, the Guarantor. The Guarantor hereby consents to the use of the Offering Document in connection with the solicitation of purchases of the Bonds by the Underwriter and confirms that it has consented to the use of the Preliminary Offering Document for such purpose prior to the availability of the Offering Document.

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The Guarantor will not take or omit to take any action which will in any way cause or result in the proceeds of the sale of the Bonds being applied in a manner other than as provided in the Guarantor Documents or as described in the Offering Document.

(h) Except as may be described in the Offering Document, there is no action, suit, proceeding, inquiry or investigation at law or in equity or before or by any public board or body pending or, to the knowledge of the Guarantor, threatened against or affecting the Guarantor, or to the knowledge of the Guarantor any meritorious basis therefor, wherein an unfavorable decision, ruling or finding would have a material adverse affect on the financial condition of the Guarantor, the operation by the Guarantor of its facilities and the transactions contemplated by the Guarantor Documents and the Offering Document or the tax-exempt status of the Guarantor or would have an adverse affect on the validity or enforceability of the Guarantor Documents or any other agreement or instrument by which the Guarantor is or may be bound or would in any way contest the corporate existence or powers of the Guarantor.

(1) This Bond Purchase Agreement is, and upon their execution and delivery

the other Guarantor Documents will be, **the legal,** valid **and** binding obligations of the Guarantor enforceable in accordance with their respective terms (subject to any applicable bankruptcy, reorganization, insolvency, moratorium or other laws affecting the enforcement of creditors?

rights generally from time to time in **effect** and to applicable legal principles and procedural requirements if equitable and other specific remedies are sought).

(1) The Guarantor has been determined to be and is exempt from federal. income taxes under Section 501(a) of the Code, by virtue of being an organization described in Section 501(c)(3) of the Code, and it is not a "**private** foundation**"** as defined in Section 509(**a) of** the Code. The Guarantor has not impaired its status as an organization exempt from federal income taxes under the Code and will not, either from and including the date hereof to and including the date of the Closing and, thereafter, while any of the Bonds remain outstanding, impair its status as an organization exempt from federal income taxes under the Code. There are no facts or circumstances presently existing which could cause such determination to be withdrawn **or** revoked.

(k) Any certificate signed by an authorized officer of the Guarantor and which has been delivered to the Issuer or the Underwriter shall be deemed a representation and warranty **by** the Guarantor to the Issuer and the **Underwriter** as to the statements made therein.

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The Guarantor agrees to cooperate reasonably with the Underwriter and its counsel in any endeavor to qualify the Bonds for offering and sale under the securities or "blue sky" **laws of** such jurisdictions of **the** United States as **the** Underwriter may request, provided that the Guarantor shall not be required to qualify to do business in any jurisdiction where it is **not** now so qualified, or to take **any** action which would subject it to general service of process in any jurisdiction where it is not now so subject. The Guarantor ratifies and consents to the use of drafts of the Preliminary Offering Document, the Preliminary Offering Document and drafts of the Offering Document prior to the availability of the Offering Document **by** the Underwriter in obtaining such qualification. The Guarantor shall pay all reasonable expenses and costs (including legal fees) incurred in connection with **such** qualification.

(m) To **the** best knowledge of the Guarantor, **after** due inquiry, (i) **other** than those Hazardous Substances used in the course of operation of the facility in accordance Environmental Regulations, no Hazardous Substances are now or have been stored, located, generated, produced, processed, treated, transported, incorporated, discharged, emitted, released, deposited or disposed of **in,** upon, under, over or from the Project, including real estate; (ii) the Project has not been used as or for a mine, a landfill, a dump or other disposal facility or a gasoline service station; (iii) no person**,** party, or private or governmental agency or entity has given

any notice of or asserted any claim, cause of action, penalty, cost or demand for payment or compensation, whether or not involving any injury or threatened injury to human health, the environment or natural resources, resulting or allegedly resulting from any activity or event described in (i) above; (iv) there are not now any actions, suits, proceedings or damage settlements relating in any way to Hazardous Substances in, upon, under, over or from the Project; and (v) the Project is not subject to any lien or claim for lien or threat of a lien in favor of any governmental entity or agency as a result of any release or threatened release of any Hazardous Substance.

(n) With respect to any Plan in which the Guarantor participates and with regard to compliance by the Guarantor with ERISA (i) neither any Plan nor the trusts created thereunder, nor any trustee or administrator thereof, has engaged in a "prohibited transaction," as

such term is defined in Section 4975 of the Code, which could subject the Plan, any such trust, or any trustee or administrator thereof, or any party dealing with the Plan or any such trust to the tax or penalty on prohibited transactions imposed by Section 4975 of the Code; (ii) the performance of the transactions contemplated by the Offering Document will not involve any prohibited transaction (other than an exempt prohibited transaction); (iii) neither any Plan nor any such trusts have been terminated, nor have there been any "reportable events," as such term is defined in Section 4043 of ERISA, since the effective date of ERISA except for the reportable events heretofore disclosed to the Underwriter in writing which had no material adverse effect on the financial conditions or results of operation of the Guarantor; and (iv) neither any Plan nor any such trusts have incurred any "accumulated funding deficiency," as such term is defined in Section 302 of ERISA (whether or not waived), since the effective date of ERISA. In addition, the Guarantor and any subsidiary, member of a controlled corporation or affiliated service group in which any the Guarantor is a member or has an interest, (i) has fulfilled in all material respects its obligations under the minimum funding standards of ERISA and the Code with respect to each of its pension plans; (ii) is in compliance in all material respects with the presently applicable provisions of ERISA, the Code and any Plan; and (iii) has not incurred any material and past due liability to the Pension Benefit Guaranty Corporation. Neither the Guarantor nor any subsidiary, member of a controlled group or affiliated service group in which it is a member or has an interest, is required to make or accrue, nor has ever made or accrued, an obligation to make a material contribution to a "multiemployer plan" as defined in Section 3(37)(A) of ERISA or Section 414 of the Code.

(0) Subsequent to [date of last audited financials or/stub period], there have been no material adverse changes in the assets, liabilities or condition of the Guarantor, financial or otherwise, and neither the operations nor the properties of the Guarantor have been adversely

affected in any substantial way as the result of any fire, explosion, accident, strike, riot, flood, windstorm, earthquake, embargo, war or act of God.

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All approvals, consents, authorizations, certifications and other orders of any government authority, board, agency or commission having jurisdiction, and all filings with such entities, which would constitute a condition precedent to or would adversely affect the performance by the Guarantor of its obligations under the Guarantor Documents have been or will be (when needed) obtained.

(q) The Guarantor has complied with all previous continuing disclosure undertakings executed by it pursuant to Rule 15c2-12.

Section 6.

Representations. Warranties and Covenants of the Underwriter.

The Underwriter, by its acceptance hereof, represents, warrants and covenants to the Issuer, the Borrower and the Guarantors that:

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The Underwriter is duly and legally authorized to purchase the Bonds for offer and sale to a limited number of sophisticated investors as provided in this Bond Purchase Agreement. The Underwriter agrees that it will resell the Bonds only to "qualified institutional buyers" as that term is defined in Rule 144A under the Securities Act of 1933, as amended (the

"Securities Act") or "accredited investors" as that term is defined under Regulation D of the Securities Act;

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The Underwriter shall comply with all applicable state and federal laws, rules and regulations in connection with the offer and sale of the Bonds;

(c) The Underwriter has been duly authorized to execute this Bond Purchase Agreement, and when executed by the Underwriter and accepted by the Issuer, this Bond Purchase Agreement will be a valid and binding obligation of the Underwriter;

(d) The Underwriter hereby represents to the Issuer that it is registered under

the Securities Exchange Act as a municipal securities dealer;

(e) Any certificate signed by a duly authorized representative of the Underwriter and delivered to the Issuer, the Borrower or the Guarantors shall be deemed to be a representation and warranty by the Underwriter to the Issuer, the Borrower and the Guarantors as to the statements made therein;

(f) The Underwriter shall not make any untrue or misleading statement in connection with the offering and sale of the Bonds and shall ensure that all information contained in the Offering Document under the caption "UNDERWRITING" is true and correct in all material respects, does not contain any untrue statement of a material fact and does not omit any material fact necessary in order to make the statements therein, in light of the circumstances in which they were made, not misleading;

(g) The Underwriter shall perform its responsibilities as an underwriter of the Bonds under applicable federal and state securities laws, including, without limitation, its obligation to review the Offering Document in a professional manner and to make such investigation as appropriate in order to have a reasonable basis for concluding that the Offering Document does not contain any untrue statement of a material fact and does not omit to state any material fact necessary in order to make the statements therein, in light of the circumstances. under which they were made, not misleading;

hereof.

(h) The Bonds will be issued and sold at the price set forth in Section 1(a)

Section 7. Conditions of Closing.

The obligations of the Underwriter hereunder shall be subject to the performance by the Issuer, the Borrower and the Guarantors of their respective obligations to be performed hereunder at or prior to the Closing, to the accuracy of and compliance with the respective representations, warranties and covenants of the Issuer, the Borrower and the Guarantors herein, in each case as of the time of delivery of this Bond Purchase Agreement and as of the Closing, and are also subject, in the discretion of the Underwriter, to the following further conditions:

(a) at the Closing, (i) the Bond Resolution, the Issuer Documents, the Borrower Documents and the Guarantor Documents shall be in full force and effect and shall have been duly authorized, executed and delivered and shall not have been amended, modified or

supplemented, except as may have been agreed to in writing by the Underwriter, and the Issuer shall have adopted and there shall be in full force and effect such additional agreements and ordinances, and there shall have been taken in connection therewith and in connection with the issuance of the Bonds all such actions as shall, in the opinion of Barnes & Thornburg LLP, as Bond Counsel ("Bond Counsel"), or McGuireWoods LLP, Counsel to the Underwriter ("Counsel to the Underwriter"), be necessary in connection with the transaction contemplated hereby, (ii) the Bonds shall have been duly authorized, executed and delivered, (iii) the Offering Document shall not have been amended, modified or supplemented, except as may have been agreed to in writing by the Underwriter, and (iv) the Issuer, the Borrower and the Guarantors shall have performed all of their respective obligations and satisfied all applicable conditions under or specified in this Bond Purchase Agreement and the Indenture to be performed at or prior to the Closing;

(b) at the Closing, there shall be delivered the approving opinion of Bond. Counsel in substantially the form set forth in APPENDIX E to the Offering Document (which shall include only such changes as the Underwriter shall approve) dated the Closing Date, and a reliance letter of such counsel, dated the Closing Date and addressed to the Underwriter, the Trustee, the Borrower and the Guarantors;

(c) at the Closing, there shall be delivered a supplemental opinion of Bond Counsel, satisfactory in form and substance to the Issuer, the Trustee and the Underwriter, addressing the matters set forth Exhibit B;

(d) at the Closing, there shall be delivered the opinion of Burke, Burns & Pinelli, Ltd., counsel to the Issuer ("Issuer's Counsel"), satisfactory in form and substance to the Issuer, the Trustee, the Underwriter, Counsel to the Underwriter and Bond Counsel, addressing the matters set forth Exhibit C;

(e) at the Closing, there shall be delivered the opinion of Greenberg Traurig, L.L.P., counsel to the Borrower and the Guarantors ("Borrower's Counsel"), satisfactory in form and substance to the Issuer, the Trustee, the Underwriter, Counsel to the Underwriter and Bond Counsel, addressing the matters set forth Exhibit D;

(f) at the Closing, the Underwriter shall receive (i) an executed copy of the Issuer

Documents, the Borrower Documents and the Guarantor Documents and (ii) a copy of the Offering Document manually signed by the Borrower and the Guarantors;

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at the Closing, the Underwriter shall receive the opinion of Counsel to the Underwriter, dated the Closing Date and in form and substance acceptable to the Underwriter;

(h) at the Closing, the Underwriter shall receive a certificate from the Borrower, satisfactory in form and substance to the Issuer, the Trustee, the Underwriter, Counsel to the Underwriter and Bond Counsel, dated as of the Closing Date, signed on its behalf by an authorized officer of the Borrower, to the effect that (i) the representations and warranties of the Borrower herein contained are true and accurate as of the Closing Date, (ii) the Borrower has complied with all agreements and satisfied all conditions on its part to be observed or satisfied. hereunder and under the Indenture at or prior to the Closing, (iii) since the respective dates as of

which information is given in the Offering Document and except as set forth therein, there has not been any material adverse change in the condition, financial or other, of the Borrower; (iv) the financial information set forth in the Offering Document including but not limited to the statements as to the sources and use of funds and the financial forecasts, is true and accurate, (v) the assumptions, forecasts and projections with respect to the Borrower's operation of the Project as set forth in the Offering Document, and in the Feasibility Study included as APPENDIX C to the Offering Document, are reasonable; (vi) as of the Closing Date, there has been no material change to the information provided by the Borrower to the feasibility consultant in connection with the Feasibility Study; and (vii) as of the Closing Date, the information in the Offering Document concerning the Guarantors, the Borrower and the Project is true and correct in all: material respects and does not contain any untrue statement of a material fact and does not omit to state a material fact necessary in order to make the statements made, in light of the circumstances under which they were made, not misleading.

(i) at the Closing, the Underwriter shall receive a certificate from each of the Guarantors, satisfactory in form and substance to the Issuer, the Trustee, the Underwriter, Counsel to the Underwriter and Bond Counsel, dated as of the Closing Date, signed on its behalf by an authorized officer of the Guarantor, to the effect that (i) the representations and warranties of the Guarantor herein contained are true and accurate as of the Closing Date, (ii) the Guarantor has complied with all agreements and satisfied all conditions on its part to be observed or satisfied hereunder and under the Indenture at or prior to the Closing, (iii) since the respective dates as of which information

is given in the Offering Document and except as set forth therein, there has not been any material adverse change in the condition, financial or other, of the Guarantor; (iv) the financial information set forth in the Offering Document including but not limited to the statements as to the sources and use of funds and the financial forecasts, is true and accurate, (v) the assumptions, forecasts and projections with respect to the Borrower's operation of the Project as set forth in the Offering Document, and in the Feasibility Study included as APPENDIX C to the Offering Document, are reasonable; (vi) as of the Closing Date, there has been no material change to the information provided by the Guarantor to the feasibility consultant in connection with the Feasibility Study; and (vii) as of the Closing Date, the information in the Offering Document concerning the Guarantors, the Borrower and the Project is true and correct in all material respects and does not contain any untrue statement of a material fact and does not omit to state a material fact necessary in order to make the statements made, in light of the circumstances under which they were made, not misleading.

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at the Closing, the Underwriter shall receive a certificate of the Issuer, dated as of the Closing Date, signed on its behalf by an authorized officer of the Issuer, to the effect that (i) the representations and warranties of the Issuer herein contained are true and accurate as of the Closing Date, and (ii) the Issuer has complied with all agreements and satisfied all conditions on its part to be observed or satisfied hereunder and under the Indenture at or prior to the Closing;

(k) at the Closing, there shall be delivered a certificate of the Underwriter, dated as of the Closing Date, signed on its behalf by an authorized representative of the Underwriter, to the effect that (i) the representations and warranties of the Underwriter herein contained are true and accurate as of the Closing Date, (ii) the Underwriter has complied with all agreements, satisfied all conditions on its part to be observed or satisfied hereunder and (iii) the

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Underwriter has complied with **all** applicable federal and state securities laws in connection with the offer and sale of the Bonds;

(1) at the Closing, **the** Issuer, **the** Trustee and the Underwriter shall receive, a certificate, satisfactory in form and substance to the Issuer, the Trustee and the Underwriter, dated the Closing Date of an officer of the Trustee as to the **authority** of the Trustee to serve as such under the Indenture and the Trustee's execution and delivery of the Indenture and authentication and delivery of the Bonds;

(m) at the Closing, the Underwriter shall receive a certificate **satisfactory** in form and substance to the Underwriter, of C.H. Johnson Consulting, Inc. (the "Market Consultant") consenting to the inclusion of the market feasibility study of Market Consultant in APPENDIX C to the Preliminary Offering Document and **the** Offering Document;

(n) at the Closing, the Underwriter shall receive a certificate satisfactory in form and substance to the Underwriter **of** Ryan Companies **US**, Inc. (the "Design-Builder"), consenting to the references and information relating to the Design-Builder in the Preliminary Offering Document and the Offering Document;

(0) at the Closing, the Underwriter shall receive a certificate satisfactory in form and substance to the Underwriter of Club-Sports Consulting Group, Inc. (the "Manager"), consenting to the references and information relating to the Manager in the Preliminary Offering Document and the Offering Document;

(p) at or prior to the Closing, the Underwriter shall receive a letter(s): addressed and satisfactory in form and substance to the Underwriter from each of the Guarantor's auditors consenting to the use of its reports in the Preliminary Offering Document and the Offering Document;

(q) at the Closing, the Underwriter and the Trustee shall receive evidence. satisfactory to the Underwriter and the Trustee of the filing of financing statements necessary to perfect (to the extent perfection can be obtained by such filing) a security interest in favor of the Trustee in the Trust Estate and the Leasehold Mortgage as well as the recordation of the Ground Lease, the Leasehold Mortgage;

(r) at the Closing, the Underwriter and the Trustee shall receive a title insurance policy, mortgage title insurance binder or commitment to issue a title insurance policy with respect to all real property conveyed by the Leasehold Mortgage issued by a company licensed to conduct a title insurance business in the State of Illinois insurance against title losses in amounts aggregating to not less than the aggregate principal amount of the Bonds and containing no exceptions that are not acceptable to Bond Counsel and Counsel to the Underwriter;

(s) at the Closing, the Underwriter shall receive a copy of a fully executed guaranteed maximum price contract by an between the Borrower and the contractor for the Project relating to the construction of the Project, including all amendments and supplements thereto;

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at the Closing, the Underwriter shall receive evidence of zoning, permits and approvals necessary for the construction of the Project;

(u) at the Closing, the Underwriter shall receive copies of Information Return for Private Activity Bond Issues, Form 8038, executed by the Issuer with respect to the Bonds;

(v) at the Closing, the Underwriter shall receive a copy of the Issuer's blanket letter of representation to DTC, satisfactory to the Underwriter; and

(w) at the Closing, the Underwriter, the Issuer, the Borrower and the Guarantors shall receive such additional legal opinions, certificates (including such certificates as may be required by regulations of the Internal Revenue Service in order to establish the tax- exempt status of the Bonds, which certificates shall be satisfactory in form and substance to. Bond Counsel) and other evidence as the Underwriter or Bond Counsel, Borrower's Counsel or Counsel to the Underwriter may deem necessary to evidence the truth and accuracy as of the Closing of the representations and warranties of the Borrower, the Guarantors, the Underwriter and the Issuer herein contained and of the Offering Document and the due performance and satisfaction by the Issuer, the Underwriter, the Borrower and the Guarantors at or prior to such time of all agreements then to be performed and all conditions then to be satisfied by them, respectively.

The opinions and certificates and other evidence referred to above shall be in form and substance satisfactory to the Underwriter, the Issuer, the Borrower and/or the Guarantors, as applicable.

If the Borrower, the Guarantors or the Issuer shall be unable to satisfy the conditions to the obligations of the Underwriter contained in this Bond Purchase Agreement, or if the obligations of the Underwriter shall be terminated for any reason permitted by this Bond Purchase Agreement, this Bond Purchase Agreement shall terminate, and neither the Underwriter, the Issuer, the Borrower nor the Guarantors shall be under any further obligation hereunder, except as provided in Section 8 hereof.

Section 8. Termination of Agreement.

The Underwriter may terminate this Bond Purchase Agreement, without liability therefor, by notification to the Issuer, the Borrower and the Guarantors, if at any time prior to the Closing:

(a) legislation shall be enacted by the Congress of the United States or a bill shall be introduced (by amendment or otherwise) in the House of Representatives or the Senate of the Congress of the United States, or a decision by a court of the United States or the Tax

Court of the United States shall be rendered, or a ruling, regulation or fiscal action shall be issued or proposed by or on behalf of the Treasury Department of the United States, the Internal Revenue Service or other governmental agency with respect to or having the purpose or effect of imposing federal taxation upon interest received on bonds of the general character of the Bonds which, in the reasonable opinion of the Underwriter, adversely affects the market for the Bonds or the sale, at the contemplated offering price, by the Underwriter of the Bonds to be purchased by it;

(b) any legislation, ordinance, rule or regulation shall be introduced in, or be enacted by, any governmental body, department or agency of the State, or a decision by any court of competent jurisdiction within the State shall be rendered which, in the Underwriter's reasonable opinion, would adversely affect the market price of the Bonds;

(c) any amendment to the federal or Illinois Constitution shall be enacted or any action by any federal or State court, legislative body, regulatory body or other authority shall

be taken which will, in the reasonable opinion of the Underwriter, materially adversely affect the tax status of the Issuer, the Borrower or the Guarantors or their respective property, income, or securities or the validity or enforceability of the Issuer Documents, the Borrower Documents or the Guarantor Documents;

(d) any state blue sky or securities commission or other governmental agency or body shall have withheld registration, exemption or clearance of the offering of the Bonds as described herein, or issued a stop order or similar ruling relating thereto;

(e) any fact shall exist or any event shall have occurred which, in the reasonable judgment of the Underwriter, makes the Offering Document untrue in any material respect or has the effect that the Offering Document contains any untrue statement of material fact or omits to state a material fact necessary to make the statements therein, in the light of the circumstances under which they were made, not misleading;

(f) any fact or event shall exist or have existed that, in the Representative's judgment, requires or has required an amendment of or supplement to the Offering Document;

(g) the New York Stock Exchange or other national securities exchange or any governmental authority, shall impose, as to the Bonds or as to obligations of the general character of the Bonds, any material restrictions not now in force, or increase materially those now in force, with respect to the extension of credit by, or the charge to the net capital requirements of, the Underwriter;

(h) a declaration of war or engagement in major hostilities by the United States or any escalation of any existing conflict or hostilities which the United States is involved or the occurrence of any other national emergency or calamity relating to the effective operation of the government of, or the financial community, in the United States shall have occurred which, in the reasonable opinion of the Underwriter, materially adversely affects the market for the Bonds or the sale, at the contemplated offering price, by the Underwriter of the Bonds to be purchased by it;

(i) legislation shall be enacted or any action shall be taken by, or on behalf of, the Securities and Exchange Commission which, in the reasonable opinion of the Underwriter, has the effect of requiring the contemplated distribution of the Bonds to be registered under the Securities Act, as amended, or the Bond Resolution, or the Indenture to be qualified under the Trust Indenture Act, or any laws analogous thereto relating to governmental bodies, and

compliance therewith cannot be accomplished prior to the Closing;

(j) a general banking moratorium shall have been declared by the United States, New York or State authorities which, in the reasoned opinion of the Underwriter,

materially adversely affects the market for the Bonds or the sale, at the contemplated offering price, by the Underwriter of the Bonds to be purchased by it;

(k)

there shall have occurred since the date of this Bond Purchase Agreement any materially adverse change in the affairs or financial condition of the Borrower or the Guarantors; or

(1) the purchase of and payment for the Bonds by the Underwriters, or the resale of the Bonds by the Underwriters, on the terms and conditions herein provided shall be prohibited by any applicable law, governmental authority, board, agency or commission.

Section 9.

(a)

Expenses.

The Borrower and the Guarantors, jointly and severally agree to pay all expenses incident to the performance of their obligations hereunder, including but not limited to (i) the cost of the preparation, printing or other reproduction (for distribution prior to, on or after the date of acceptance of this Bond Purchase Agreement) of the Issuer Documents, the Borrower Documents, the Guarantor Documents and the Offering Document, including amendments thereto pursuant to Section 1(f) and 1(g) hereof, in reasonable quantities for distribution, (ii) the cost, if any, of preparing, printing or reproducing the Bonds, (iii) the fees and disbursements of Bond Counsel, and any other experts or consultants retained by the Issuer, (iv) the fees and disbursements of Borrower's Counsel, (v) the fees and disbursements of the Trustee and its counsel, (vi) the fees and expenses of the Issuer and Issuer's Counsel and (vii) bond clearance fees, telex or telecopy charges, CUSIP fees or DTC fees.

(b)

Additionally, the Borrower and the Guarantors, jointly and severally, shall pay (i) the cost of printing or other reproduction of this Bond Purchase Agreement, (ii) the cost of qualifying the Bonds for sale in various states chosen by the Underwriter and the cost of preparing or printing any blue sky materials to be used in connection with such sale and (iii) all other expenses incurred by them in connection with their offering and distribution of the Bonds, including the fees and disbursements of Counsel to the Underwriter.

Section 10. No Pecuniary Liability of Issuer.

No provision, covenant, or agreement contained in this Bond Purchase Agreement and no obligation herein imposed upon the Issuer, or the breach thereof, shall constitute an indebtedness of the Issuer, the State or any political subdivision thereof within the meaning of any constitutional provision or statutory limitation of the State or shall constitute or give rise to à pecuniary liability of the Issuer, the State or any political subdivision thereof or a charge against the general credit or taxing powers of the State. The Issuer has no taxing power. The Issuer and any of its officials, officers, employees, members or agents shall have no monetary liability arising out of the obligations of the Issuer hereunder or in connection with any covenant, representation or warranty made by the Issuer herein, and neither the Issuer nor its officials shall be obligated to pay any amounts in connection with the transactions contemplated hereby other than from the Trust Estate or other moneys received from the Borrower or the Guarantors.

Section 11.

Indemnification.

(a) The Borrower and the Guarantors, jointly and severally, agree to indemnify and hold harmless the Issuer, each director, official, trustee, member, officer or employee of the Issuer and each person, if any, who has the power, directly or indirectly, to direct or cause the direction of the management and policies of the Issuer pursuant to the Act or the Issuer's rules and regulations or by-laws (collectively, the "Issuer Indemnified Parties"), against any and all losses, claims, damages, liabilities or expenses, including reasonable attorneys' fees and expenses, whatsoever arising from or in any manner directly or indirectly growing out of or connected with any of the matters set forth in the Loan Agreement.

(b) **The** Borrower and the Guarantors, jointly and severally, agree to pay and to indemnify and hold harmless the Underwriter, any member, officer, director, official and employee of the Underwriter, including its counsel and each person, if **any,** who "controls" the Underwriter within the meaning of Section 15 of the Securities Act, as amended, (collectively referred to **herein as** the "Underwriter Indemnified Parties**")** from any loss, claim**,** damage, tax, penalty or expense (including reasonable counsel fees), or liability of any nature due to any and all suits, actions, legal or administrative proceedings**,** or claims arising or resulting from, or in any way connected with: (i) **the** financing, installation, operation, use, or maintenance of the Project, (**ii**) any act, failure to act, **or** misrepresentation by **any** Underwriter Indemnified Party in connection with the issuance, sale, delivery or remarketing of the Bonds, or (iii) any **act,** failure to act, or misrepresentation by **the** Issuer, the Borrower or the Guarantors in connection with **this** Bond Purchase Agreement or any other document involving the Issuer, the Borrower or **the** Guarantors in this matter; provided, however, that neither the Borrower nor the Guarantors shall be required to indemnify any Underwriter Indemnified Party for any such loss, claim, damage, tax, penalty, expense or liability to the extent **it** is attributable to the willful misconduct or gross negligence of any Underwriter Indemnified Party.

(c)

In case any claim shall be made **or** any action shall be brought **against** one or more of the Issuer Indemnified Parties or the Underwriter Indemnified Parties (the Issuer Indemnified Parties and the Underwriter Indemnified Parties, collectively **the** "Indemnified Party") in respect of which indemnity can be sought against the Borrower or the Guarantors pursuant to either of the preceding **paragraphs** (a) and (b), the Indemnified Party seeking indemnity shall promptly notify **the** Borrower **and** the Guarantors, in writing, and the Borrower or the Guarantors shall promptly assume the defense thereof, including the employment of counsel chosen by the Borrower or the Guarantors and approved by the Underwriter or the Issuer, or both (provided, that such approval by the Underwriter or the Issuer **shall** not be unreasonably withheld)**,** the payment **of all** expenses and the **right** to negotiate and consent to settlement. If any Indemnified Party is advised **in** a written opinion of counsel that there may be legal defenses **available** to such Indemnified **Party which** are adverse to or in conflict with those available to the Borrower or the Guarantors or that the defense of such Indemnified Party should be handled by separate counsel, the Borrower or **the** Guarantors **shall** not have the right to assume the defense of such Indemnified Party, but the Borrower or the Guarantors **shall** be responsible for **the** reasonable fees and expenses of counsel retained by such Indemnified Party in assuming its **own** defense, and provided also that, if the Borrower shall have **failed** to assume the defense of such action or to retain counsel reasonably satisfactory to the Underwriter or Issuer within a reasonable time after notice of the commencement of such action, the reasonable.

fees and expenses of counsel retained by the Indemnified Party shall be paid by the Borrower or the Guarantors. Notwithstanding the foregoing, any one or more of the Indemnified Parties shall have the right to employ separate counsel with respect to any such claim or in any such action and to participate in the defense thereof, but the fees and expenses of such counsel shall be paid by such Indemnified Party unless the employment of such counsel has been specifically authorized by the Borrower or the Guarantors or unless the provisions of the immediately preceding sentence are applicable. The Borrower and the Guarantors shall not be liable for any settlement of any such action affected without their consent, but if settled with their consent or if there be a final judgment for the plaintiff in any such action with or without consent, the Borrower and the Guarantors agree to indemnify and hold harmless the Indemnified Party from and against any loss, liability or expense by reason of such settlement or judgment.

(d) The Underwriter agrees, at its expense, to indemnify, defend and hold harmless the Issuer Indemnified Parties and the Borrower and the Guarantors, each director, official, trustee, member, officer or employee of the Borrower and the Guarantors and each person, if any, who has the power, directly or indirectly, to direct or cause the direction of the Borrower or the Guarantors (collectively, the "Borrower and Guarantor Indemnified Parties") from and against any and all losses, claims, damages, demands, liabilities, costs or expenses (for purposes of this paragraph (d), collectively, "Claims"), including reasonable attorneys' fees and expenses, if such Claims are a result of, arise out of or are materially increased, strengthened or enhanced by or would not exist but for a breach by the Underwriter of its duties under, or failure to abide by any of its covenants in this Bond Purchase Agreement, as set forth in Section 6 hereof. In addition to the other provisions of this Section 11, the Underwriter agrees to pay, indemnify and hold harmless the Issuer and each Issuer Indemnified Party from and against all costs, losses, fees, claims, expenses, damages or injuries related to the Issuer's consent to suit or service of process in any jurisdiction on account of the issuance of the Bonds, whether pursuant to the execution of a Form U-2 or otherwise. Such indemnification shall include, without limitation, any legal fees or travel expenses incurred by the Issuer or any Issuer Indemnified Party necessary to appear before or defend a matter in any court, agency or tribunal in connection with the Bonds.

(e)

In case any claim shall be made or any action shall be brought against one or more of the Issuer Indemnified Parties or the Borrower and Guarantor Indemnified Parties (collectively, the "Indemnified Person") in respect of which indemnity can be sought against the Underwriter pursuant to the preceding paragraph (d), the Indemnified Person seeking indemnity shall promptly notify the Underwriter in writing, and the Underwriter shall promptly assume the defense thereof, including the employment of counsel chosen by the Underwriter and approved by the Borrower, the Guarantors or the Issuer, or all of them provided, that such approval by the Borrower, the Guarantors or the Issuer shall not be unreasonably

withheld), **the** payment of all expenses and the right to negotiate and consent to settlement. If any Indemnified Person is advised in a written opinion of counsel that there may be **legal** defenses available to such Indemnified Person **which** are adverse to or in conflict **with** those available to the Underwriter or that the defense of such Indemnified Person should be handled by separate counsel, the Underwriter shall not have the right to assume the defense of such Indemnified Person, **but** shall be responsible for **the** fees and expenses of counsel **retained** by such Indemnified Person **in** assuming its own **defense**, and **provided** also that, if the Underwriter shall have failed to assume the defense of such action or to retain counsel reasonably satisfactory to the Issuer, the

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Guarantors **or** the Borrower **within** a reasonable time after notice of the commencement of such action, the reasonable fees and expenses of counsel retained by the Indemnified Person shall be paid **by** the **Underwriter**. Notwithstanding the foregoing, any one or more of the Indemnified Persons shall have the **right** to employ separate counsel in any such action and to participate in the defense thereof, but **the** fees and expenses of such **counsel** shall be at the **expense** of such Indemnified Person unless the employment of such counsel has been specifically authorized, in writing, by the Underwriter or unless the provisions of the immediately preceding sentence **are** applicable. The Underwriter shall not be **liable** for any settlement of any such action affected without its written consent, but if settled with **the** written consent of the Underwriter or if there be a **final** judgment for

the plaintiff in any such action with or without consent, the Underwriter agrees to indemnify and hold harmless the Indemnified Person from and against any loss, liability or expense by reason of such settlement or judgment.

(f) In order to provide for just and equitable contribution in circumstances in which the indemnity agreement provided for in this Section 11 is for any reason held to be unavailable to the Underwriter, the Issuer, the Borrower or the Guarantors other than in accordance with its terms, the Underwriter, the Borrower and the Guarantors, jointly and severally, shall contribute to the aggregate losses, liabilities, claims, damages and expenses of the nature contemplated by said indemnity agreement incurred by the Underwriter, the Issuer, the Borrower and the Guarantors in such proportions that the Underwriter is responsible for that portion represented by the percentage that the underwriting discount bears to the initial public offering price appearing on the cover page of the Offering Document and the Borrower and the Guarantors are responsible for the balance; provided, however, that no person guilty of fraudulent misrepresentation shall be entitled to contribution from any person who was not guilty of such fraudulent misrepresentation. For purposes of this Section, each person, if any, who controls the Underwriter shall have the same rights to contribution as such Underwriter.

(g) The covenants and agreements of the Borrower, the Guarantors and the Underwriter herein contained shall survive the delivery of the Bonds.

Section 12.

(a) Miscellaneous.

All notices, demands and formal actions hereunder shall be in writing and mailed, telegraphed or delivered to:

The Underwriter:

The Issuer:

Oppenheimer & Co. Inc.
50 South Sixth Street
Suite 1300
Minneapolis, Minnesota 55402
Attention: Bryan H. Nelson, Senior Vice President

Illinois Finance Authority
Two Prudential **Plaza**
180 North Stetson Avenue, Suite 2555
Chicago**,** IL 60601
Attention: Executive Director

The Borrower:

The Guarantors:

(b)

North Shore Ice Arena, LLC c/o
Greenberg Traurig, LLP 77
West Wacker Drive Suite 2500
Chicago, IL 60601
Attention: Richard A. Sirus, Esquire

Wilmette Hockey Association, Inc. Winnetka Hockey Club, Inc.
c/o Greenberg Traurig, LLP
77 West Wacker Drive
Suite 2500
Chicago, Illinois 60601
Attention: Richard A. Sirus, Esquire

This Bond Purchase Agreement will inure to the benefit of and be binding upon the parties hereto and their successors and assigns, and will not confer any rights upon any other person. The terms "successors" and "assigns" shall not include any purchaser of any of the Bonds from the Underwriter merely because of such purchase.

(c) All representations, warranties, covenants and agreements of the Issuer, the Borrower, the Guarantors and the Underwriter in this Bond Purchase Agreement shall remain operative and in full force and effect, regardless of (i) any investigation made by or on behalf of any party, (ii) delivery of and payment for the Bonds hereunder or (iii) termination or cancellation of this Bond Purchase Agreement.

(d)

Section headings have been inserted in this Bond Purchase Agreement as a matter of convenience of reference only, and it is agreed that such section headings are not a part of this Bond Purchase Agreement and will not be used in the interpretation of any provisions of this

Bond Purchase Agreement.

(e) **This** Bond Purchase Agreement shall not be **assigned by** the Borrower, the Guarantors, the Issuer **or** the Underwriter without the prior written consent of the other parties, which consent **shall** be given or withheld at the sole discretion of **any** such party.

(f) If any provision of this Bond Purchase Agreement shall be held or deemed to be or shall, in fact, be inoperative, invalid or unenforceable as applied in any particular case in any jurisdiction or jurisdictions**,** or in all jurisdictions because it conflicts with any **provisions** of any Constitution, statute**,** rule of public policy, or any other reason, such circumstances shall not **have** the effect of rendering the provision in question inoperable or unenforceable in any other case or circumstance, or of rendering any other provision or provisions of **this** Bond Purchase Agreement **invalid**, inoperative or unenforceable to any extent whatever.

(g) This Bond Purchase Agreement **shall** be governed by and construed in accordance with **the** laws of the State.

(h) This Bond Purchase Agreement may be executed in several counterparts, each of which shall be regarded as an original and all of which shall constitute one and the **same** document.

[Signature *Page Follows]*

Accepted
:

ILLINOIS FINANCE AUTHORITY

By:

Name:

Title:

Accepted:

NORTH SHORE ICE ARENA, LLC

By:

Name:

Title:

Accepted:

WILMETTE HOCKEY ASSOCIATION, INC.

By:

Name:

Title:

Accepted:

WINNETKA HOCKEY CLUB, INC.

By:

Name**:**

Title:

OPPENHEIMER & CO. INC.

By:

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Name: Bryan H. Nelson

Title: Senior Vice President

Accepted:

ILLINOIS FINANCE AUTHORITY

By:

Zum M

Halbad

Name: Kym M. Hubbard

Title: Executive Director

Accepted:

NORTH SHORE ICE ARENA, LLC

By:

Name:

Title**:**

Accepted:

WILMETTE HOCKEY ASSOCIATION, INC.

By**:**

Name**:**

Title:

Accepted:

WINNETKA HOCKEY CLUB, INC.

By:

Name:

Title:

OPPENHEIMER & CO. INC.

By:

Name: Bryan H. Nelson

Title: Senior Vice President

CHICAGO BANCORP

Accepted:

ILLINOIS FINANCE **AUTHORITY**

By:
Name:
Title:

Accepted:

NORTH SHORE ICE ARENA, LLC

Club J. Silti

By:
Name:
Title:
CHARLES O. SMITH
PRESIDENT

Accepted:

WILMETTE HOCKEY ASSOCIATION, INC.

By: Clue 0. Su

Name:

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CHARLES
0. SMIT

Title:

PRESIDENT

Accepted:

WINNETKA HOCKEY CLUB, INC.

By:

Name:

Title:

OPPENHEIMER **& CO. INC.**

By:

Name: Bryan H. Nelson

Title: Senior Vice **President**

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Accepted:

ILLINOIS FINANCE AUTHORITY

By:

Name:

Title:

Accepted:

NORTH SHORE ICE ARENA, LLC

By:

Name:

Title:

Accepted:

WILMETTE HOCKEY ASSOCIATION, INC.

By:

Name:

Title:

Accepted

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WINNETKA HOCKEY CLUB, INC.

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By:

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President

OPPENHEIMER & CO. INC.

By:

Name: Bryan **H. Nelson**

Title: **Senior Vice President**

Maturity Schedule

Exhibit A

$1,015,000 5.50% Term Bonds Due December 1, 2018 - Price 99.987%
$1,935,000 6.125% Term Bonds Due December 1, 2028 - **Price** 98.544%
$4,040,000 6.25% Term Bonds Due December 1, 2038 - Price 98.311%

$1,500,000 6.25% Special Optional Redemption Term Bonds Due June 1**, 2038** - Price 98.320%

Exhibit B

Matters to be Addressed in Supplemental Opinion of Bond Counsel

1. The Bonds are exempt from registration under **the** Securities Act of 1933, as amended, and **the** Indenture is exempt from qualification under the Trust Indenture Act of 1939, as amended.

2. The statements contained in the Offering Document under the captions "THE BONDS" (excluding the statements contained under the subcaption "Book-Entry Only System**"),**

"SECURITY AND SOURCES OF PAYMENT FOR THE BONDS," and "TAX MATTERS" of, and in APPENDICES D AND E to, the Offering Document, present, in all material respects, fair and accurate statements or summaries of the matters therein.

Exhibit C

the Act;

1.

2.

Matters to be Addressed in Opinion of Issuer's Counsel

The Issuer is a body politic and corporate of the State created and existing, under

The Issuer is authorized under the laws of the State, including particularly the Act, to (i) issue the Bonds for the purposes for which they are to be issued; (ii) lend the proceeds. of the Bonds to **the** Borrower for the purposes set forth in the Loan Agreement; (iii) enter into the Issuer Documents; and (iv) pledge and assign to the Trustee the payments to be made **by** the Borrower and the Issuer's rights under **the** Loan Agreement (other than **the** Unassigned Rights) as security for the payment of the principal of and interest **on** the Bonds.

3. The Issuer has full power and authority to consummate the transactions contemplated to be consummated by it in the Issuer Documents and the Offering Document, and the Issuer has duly authorized and approved the execution **and** delivery of the same as well as any and all such other agreements and documents as may be required to be executed, delivered or received by **the** Issuer in order to carry out, give effect to and consummate the transactions contemplated herein and in the Offering Document.

4. The execution and delivery by **the** Issuer of the Bonds, the Issuer Documents and other documents contemplated herein or **in** the Offering Document to be executed and delivered by the Issuer, and compliance by **the** Issuer with **their** provisions, and the assignment of the Loan Agreement (other **than** Unassigned Rights) to the Trustee, do **not** and will not, in any material respect, conflict with or constitute on the part of **the** Issuer a breach of or a default under any existing law, court or administrative regulation**,** decree, order, agreement, indenture**,** mortgage or lease by which the Issuer is or may be bound; provided, no representation is

made with respect to Federal or State securities laws, rules or regulations.

5. The Bonds and the Issuer Documents have been duly authorized, executed and delivered by the Issuer and constitute the valid, legally binding obligations of the Corporation enforceable in accordance with their terms except as such enforcement may be limited by bankruptcy, insolvency, reorganization or other laws relating to or affecting the enforcement of creditors' rights.

6. The information relating to the Issuer under the headings "THE ISSUER" and "LITIGATION" contained in the Offering Document as of its date did not, and as of the date hereof does not, contain an untrue statement of a material fact or omit to state a material fact required to be stated therein, or necessary to make the statements made therein, in light of the circumstances under which they were made, not misleading.

7. There is no action, suit, proceeding, inquiry or investigation at law or in equity or before or by any court, public board or body pending or, to the knowledge of the Issuer, threatened against or affecting the Issuer (as to which the Issuer has received service of process)

or, to the actual knowledge of the Issuer, threatened against or affecting the Issuer (or to the actual knowledge of the Issuer, any meritorious basis therefor) wherein an unfavorable decision, ruling or finding (i) would adversely affect the transactions contemplated in the Bond Purchase Agreement or in the Offering Document, (ii) would adversely affect the validity or enforceability against the Issuer of the Bonds, the Issuer Documents or any other agreement or instrument to which the Issuer is a party and which is used or contemplated for use in the consummation by the Issuer of the transactions contemplated herein or in the Offering Document or (iii) would question the exclusion of the interest on the Bonds from gross income for federal income tax

purposes.

8.

Neither the corporate existence of the Issuer nor the right of the members of the Issuer to their offices nor the title of the officers of the Issuer to their respective offices are being contested and no grant of authority or outcome of the proceedings of the Issuer for the issuance of the Bonds has been repealed, revoked or rescinded.

1.

Matters to be Addressed in Opinion of Borrower's **and** Guarantors' Counsel

The Borrower is (i) a limited liability company, duly created and existing pursuant to the Illinois Limited Liability Company Act and governed by the Articles of Organization of the Borrower establishing the Borrower, and (ii) Wilmette Hockey Association is the sole member of the Company.

2. Each of the Guarantors (i) is a not-for-profit corporation, duly created and existing pursuant to the Illinois General Not For Profit **Company** Act of 1986 and governed by the Articles of Incorporation of the Guarantor (and all amendments thereto) establishing the Guarantor and the By-Laws of the Guarantor; (ii) is recognized by the Internal Revenue Service as an organization described in Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code"**),** and exempt from federal income taxes under Section 501(a) of the Code (a "Tax Exempt Organization"**);** and (iii) is not a "Private Foundation" as described in Section 509(a) of the Code.

3.

The Borrower Documents (in the **case** of the Borrower) and the Guarantor Documents (and together with **the** Borrower Document**, the** "Transaction Documents") **(in** the case of each Guarantor) have been duly authorized, executed and delivered by the Borrower or the Guarantors, as applicable, and, assuming due authorization, execution and delivery by **the** other parties thereto, represent the valid and binding agreements of **the** Borrower or the Guarantors, as applicable, enforceable in accordance with their respective terms, except as such enforceability (i) may be limited by applicable bankruptcy, insolvency, reorganization and other similar laws affecting the enforcement of creditors' rights and remedies generally, **(**ii) is subject to general principles of equity (regardless of whether enforceability is considered in a proceeding in equity or at law**),** and (**iii**) may be limited by public policies or legal principles of general application that limit or affect the enforcement of provisions of a contract.

4.

The execution and delivery by the Borrower **or the** Guarantors, as **applicable,** of the Transaction Documents to which the Company **or the** Guarantors, as applicable**,** is a party, the consummation of the transactions therein contemplated and the fulfillment of **or** compliance **with** the terms and conditions thereof, will not conflict with or constitute a violation or breach of or default (with due notice or the passage of time or both) under organizational documents of the Company or the Guarantors, as applicable, or any of the documents or instruments referred to in the Factual

Certificate which conflict, violation, breach or default would materially adversely affect the consummation of the transactions contemplated by the Transaction Documents.

5. No consent or approval of any holder of any indebtedness of the Borrower or the Guarantors, as applicable, and, except for governmental approvals required in connection with the Project which are not required to be obtained as of the date hereof, no consent, permission, authorization, order or license of, or filing or registration with, any governmental authority, legislative body, board, agency or commission having jurisdiction of the matter, is necessary as

of the date hereof in connection with the Borrower's or the Guarantors', as applicable, execution, delivery and performance of the Transaction Documents, except as have been obtained or made as of the date hereof and as are in full force and effect.

6. There is no action, suit or proceeding before or by any court or federal, state, municipal or other governmental authority pending or, to our knowledge, threatened against the Borrower or the Guarantors, as applicable, which, if determined adversely to the Borrower or the Guarantors, as applicable, would have a material adverse effect upon the financial condition, assets, properties or operations of the Borrower or the Guarantors, as applicable, the validity or enforceability of the Transaction Documents, or the ability of the Borrower or the Guarantors, as applicable, to perform its obligations under the Transaction Documents.

7. No liens, encumbrances, covenants, conditions and restrictions, if any, will be then-existing (not otherwise previously disclosed to the Underwriter or created on the Closing Date pursuant to the Transaction Documents) which would interfere with or impair the operation, or materially adversely affect the value, of the Project or the Borrower's or Guarantor's assets, given the purposes for which the same are being used.

8. No information has come to our attention that causes us to believe that the information in the Offering Document under the captions "THE BORROWER AND THE GUARANTORS", "THE PROJECT", "LITIGATION" (to the extent such section relates to the Borrower and the Guarantors), "APPENDIX A - Information Regarding the Borrower and the Guarantors", and the information contained in the Market Feasibility Study (attached to the Offering Document as APPENDIX C) under the caption "Projected Operations - Operating Pro Forma", contains any untrue statement of a material fact or omits to state any material fact required to be stated therein or necessary in order to make the statements therein, in light of the circumstances under which they were made, not misleading; provided, however, we express no view with respect to any financial information, feasibility information, assessment information or statistical data set forth in the Offering Document.